

Ref No.: BD-ACEPM-SAMCO-LET-015

Date: Wednesday, 15th of October 2025

To: SAMCO National Construction Company
Attention: Eng. Mohammed Sami Mohammed (Project Manager)

Project Name: The Big Business District

Contract/Package: Construction Works of the Civil Works for Buildings B1, B2, B3 and B4

Subject: **Re: Response to Your Letter (BD-ACERPW-SAMCO-LET-014) Regarding the Delay of Works at the Site**

Reference (S):

- 1) Contractor's Letter Ref. BD-CW-SAMCO-Roya-LET-018 dated 13/10/2025
- 2) MOM dated on 28/9/2025
- 3) Site Handing Over Certificates on 29/06/2025 , 07-09-2025

Dear Sir,

With reference to the above-mentioned subject and in response to the Contractor's Letter Ref. No. 1, please find below our comments and clarifications on each point raised:

1. The Contractor stated in his letter Ref. No. 1 that an agreement between the parties during the meeting with ROYA Management on 25 September 2025 regarding the earthworks for Buildings B3 and B4. However, a subsequent site meeting with the Employer's Management held on 28 September 2025 (Ref. No. 2) confirmed that all earthworks related to Buildings B1 & B2 only are to be completed by the Employer while B3 & B4 fall under the Contractor's responsibility, contrary to what was stated in the Contractor's letter. This determination is based on the report provided by the Contractor's Geotechnical Consultant, A&A, which made no mention of any need for any protective measures for the excavation works related to B3 and B4. Additionally, the site was handed over to the Contractor without any obstacles on 7 September 2025. Accordingly, the Contractor is expected to commence the works without any further delays.
2. The Contractor mentioned that the material submittal for soil replacement was submitted on 25 September 2025. However, the site for B1 and B2 was handed over to the Contractor on 29 June 2025 (Ref. No. 3). The delay in submitting the material and related engineering documents is not excused. Nevertheless, in good faith and to maintain progress, the Employer and the Engineer agreed during the meeting held on 7 October 2025 to allow the Contractor to begin supplying the soil replacement material prior to the release of test results.
3. & 4. All coordination with subcontractors and supply of materials are solely the Contractor's responsibility as per Sub-Clauses 4.1 [Contractor's General Obligations] and 4.4 [Subcontractors]. The Contractor shall also maintain all project access roads and ramps in a serviceable condition suitable for material delivery and site operations, in accordance with Sub-Clause 4.15 [Access Route]. In addition the Contractor successfully delivered today 15 October 2025, the first patch without any obstacles.

5. The Engineer has no objection to the Contractor commencing the delivery of soil replacement materials to Site, as agreed during the meeting held at the site office on 7 October 2025, but responsibilities related to the supply and potential non-compliance of test results shall remain entirely with the Contractor responsibility in accordance with Sub-Clauses 4.1 [Contractor's General Obligations], 4.9 [Quality Assurance], and 7.5 [Rejection] of the Contract.

The Engineer appreciates the Contractor's cooperation and proactive communication. Please be guided accordingly and ensure compliance with the above directions in line with the Contract Conditions and to avoid any potential delays.



Project Manager,
ACE Project Management

Attachment(s): N/A

CC:

Eng. Mostafa Gala – Owner representative